

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent and
Third-Party Complainant*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.; SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE. LTD.; AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
Third-Party Respondents.

DOCKET NO. 24-16

Served: May 28, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

ORDER ON MOTION TO DEFER FILING JOINT STATUS REPORT AND PROPOSED SCHEDULE

On May 23, 2025, Respondent filed a Motion to Defer Filing a Joint Status Report (“Motion to Defer”). The motion to “defer” the time to file a joint status report is a motion to enlarge time and was not filed “at least seven (7) days before the scheduled filing date” in compliance with 46 C.F.R. § 502.102.¹ Respondent offers no reason for the late filing of the motion, and Complainant does not join in the motion, instead, “SEA has stated that it is unable to take a position at this time.” Motion to Defer at 1.

The motion asserts there is good cause for the extension of time to file the JSR because Respondent filed counterclaims against Complainant with its answer, and also filed a third-party complaint, so “it would be inefficient and counterproductive for the Parties to submit separate status reports now and after the Counter-Respondent and the Third-Party Respondents have answered the complaints against them, and for the Presiding Officer to review multiple status reports and order multiple proposed procedural schedules.” Motion to defer at 2. Respondent seeks deferral of the JSR for 15 days after Complainant responds to the counterclaims and the Third-Party Respondents answer the third-party complaint.

Pursuant to the April 11, 2025, Order on Motion to Dismiss, two counts of the complaint were dismissed, Complainant was ordered to file an amended complaint within two weeks of the Order, Respondent was ordered to file its answer within 10 days of service of the amended

¹ Respondent filed the motion less than seven days before the Joint Status Report (“JSR”) was due, which was the next business day.

complaint, and the parties were ordered to file a joint status report “no later than 15 days after the answer is filed, indicating whether they have addressed the requirements of the Initial Order, including whether they have each met with or scheduled a meeting with CADRS, and proposing a discovery schedule.” Order on Motion to Dismiss at 19. Complainant filed the Amended Complaint as ordered, and Respondent filed an unopposed motion for an enlargement of time of one week to respond to it. In that motion, Respondent stated that the enlargement of time would “not materially impact the schedule or proceedings in this case” and specifically referenced the filing of the joint status report as the next item that was due. Respondent’s Unopposed Motion for Enlargement of Time at 2.² Respondent filed the answer with counterclaims, and third-party complaint, on May 12, 2025, yet it did not seek an extension of the time by which to file the JSR until the day before the JSR was due. Complainant filed a status report shortly before midnight on May 27, 2025, the day the JSR was due.³

Respondent states that there is good cause to defer (enlarge) the time for filing a status report because it would be inefficient for the parties to file separate status reports. SEA and COSCO were ordered to file a *joint* status report, pursuant to both the Initial Order and the Order on Motion to Dismiss, confirming that they had met with CADRS and made initial disclosures pursuant to 46 C.F.R. § 502.141. Those orders applied to the parties at the time of the initial complaint—Samsung Electronics America, Inc. (“SEA”) and COSCO Shipping Lines Co., Ltd. (“COSCO”)—and the introduction of counterclaims by COSCO against SEA and a third-party complaint against the alleged parent company of SEA and subsidiaries of that parent company does not negate the orders as to either SEA or COSCO.

It is unclear from COSCO’s Motion to Defer why its counterclaims should delay the filing of a status report and proposed discovery schedule. SEA is on notice of the counterclaims, and the allegations are related to the same detention and demurrage charges pled by SEA in the amended complaint.⁴

Similarly, the filing of a third-party complaint by COSCO does not provide good cause to delay filing a status report confirming that COSCO and SEA have made the required initial disclosures and contacted CADRS as instructed in the Initial Order and the Order on Motion to Dismiss. Recent third-party complaints have been filed after joint status reports and scheduling orders have issued. *See M.E. Dey & Co., Inc. v. Hapag-Lloyd AG and Hapag-Lloyd (America) LLC v. CSX Transportation, Inc.*, Docket No. 22-35 (where respondents, collectively known as Hapag-Lloyd, filed an answer in March 2023, and then filed a motion for leave to file a third-party complaint and the third-party complaint in April 2023 on the same day as the original parties filed a joint status report and proposed discovery and briefing schedule); and *Rahal International Inc. v. Hapag-Lloyd AG and Hapag-Lloyd (America), LLC v. Maher Terminals, LLC, GCT New York LP, and GCT Bayonne LP*, Docket No. 23-05 (where respondents filed an answer on August 1, 2023, the original parties filed a joint status report on August 18, 2023, a

² That motion, too, was filed less than seven days from the date the answer was due, but unlike the instant motion, just cause was offered for the late filing. *Id.* at 1, n.1.

³ SEA’s status report states that it will file an opposition to Respondent’s motion. While it is welcome to file a response, this order addresses the motion and no response is required.

⁴ The counterclaims are essentially identical to those filed by respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited against SEA in Docket No. 24-17.

scheduling order issued August 21, 2023, respondents filed motion for leave to file a third-party complaint on August 25, 2023, and the third-party complaint was filed on September 8, 2023). Moreover, the parties can move for amendments to scheduling orders as discovery progresses and they have a better sense of volume of documents and the logistics of depositions.

Accordingly, there being no good cause for either the late filing of the Motion to Defer or for the enlargement of time requested, the motion is **DENIED**.

In its status report, Complainant SEA states that it participated in a preliminary conference with CADRS on May 21, 2025, and exchanged initial disclosures with Respondent COSCO. SEA Status Report at 4. SEA proposes a discovery schedule that does not allow for the issuance of an initial decision by September 29, 2025. Despite proposing a compressed discovery schedule, SEA contends that it is unrealistic, and the parties likely will require substantial amendment to the schedule due to the anticipated volume of electronically stored information, the need to translate documents, and the location of likely deponents in a different time zone. Given the remaining allegations in the amended complaint, the counterclaims, and the third-party complaint, the parties will likely need more time for discovery as the case progresses, but that can be addressed in the future when the parties can confer on the extent of discovery requests and, preferably, submit a joint motion to amend the schedule. Based on the above, it is hereby

ORDERED that Respondent COSCO contact CADRS by May 30, 2025. It is

FURTHER ORDERED that Respondent COSCO file a status report by May 30, 2025, confirming that it has contacted CADRS and exchanged initial disclosures with Complainant SEA. It is

FURTHER ORDERED that the parties follow this schedule:

June 4, 2025	Parties Serve Discovery Requests
July 14, 2025	Document Production Completed, Fact Depositions Begin
July 21, 2025	Joint Status Report
August 25, 2025	Complete Fact Depositions
August 25, 2025	Expert Discovery Begins
September 29, 2025	Discovery Completed

The parties should review the Initial Order and the Commission's rules. Future status reports should be filed jointly, unless otherwise ordered.



Linda S. Harris Crovella
Administrative Law Judge